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CASE #	CASE NAME	HEARING NAME
CVMV2604314	ROYAL COACHES AUTO BODY & TOWING, INC. VS RODRIGUEZ	HEARING ON PETITION FOR AN ORDER AUTHORIZING PRESERVATION OF EVIDENCE

Tentative Ruling: Off calendar per Notice of Withdrawal 6/30/26.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503537	MADUENO VS SHAW	MOTION TO QUASH DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS

Tentative Ruling: PROOF OF SERVICE: Proper

Grant

This is an employment action. On June 17, 2025, Plaintiff Damien Anthony Madueno ("Plaintiff") filed a Complaint asserting claims for various FEHA and Labor Code violations against Defendants Arrowhead Logistics ("Arrowhead"), Lauren Shaw, Madison Demaio, and Jayden Garcia (together "Defendants"). In his Complaint, Plaintiff alleges that during his employment with Arrowhead, he was subjected to ongoing sexual harassment and assault and was terminated in retaliation for reporting the harassment.

On April 10, 2026, Arrowhead issued subpoenas to Plaintiff's prior employers, Patriot Logistics LLC ("Patriot") and High Performance Logistics LLC ("High Performance")

Plaintiff moves to quash the subpoenas served on his non-party former employers arguing that they violate his right to privacy; are overbroad and not directly relevant to any claim or defense; are designed to harass him; and seek inadmissible character evidence.

In opposition, Arrowhead argues that the subpoenas are proper because by filing this action, Plaintiff placed his employment history, earnings, attendance, performance, ability to work, separation from prior employment, credibility, and emotional and financial damages in issue.

Arrowhead subpoenaed the records of two of Plaintiff's former employers, Patriot and High Performance. These subpoenas seek (1) all non-privileged documents related to any worker's compensation/insurance claims made by Plaintiff; (2) all wage records, including time cards, pay stubs, and manual checks; and (3) all personnel records, including onboarding documents, documents regarding his separation from the company, performance evaluations, discipline records, notices of wage

attachments/garnishments, and more. (Decl. of Omri A. Ben-Ari [Ben-Ari Decl.], Exs. B and C.) Plaintiff argues, correctly, that the subpoenas violate his right to privacy.

In a motion to quash or motion seeking a protective order, “[t]he party claiming privilege carries the burden of showing that the evidence which it seeks to suppress is within the terms of the statute.” (*Soltani-Rastegar v. Superior Court* (1989) 208 Cal.App.3d 424, 426, citing *D. I. Chadbourne, Inc. v. Superior Court of San Francisco* (1964) 60 Cal.2d 723, 729; see also, *Williams v. Superior Court* (2017) 3 Cal.5th 531, 537; *Bank of America, N.A. v. Superior Court* (2013) 212 Cal.App.4th 1076, 1099.) If that party establishes a prima facie claim of privilege, the burden then shifts to the party seeking discovery to show that the information (a) is directly relevant to the cause of action or defense, and essential to a fair resolution of the lawsuit; and (b) cannot be obtained through any less intrusive means. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 843-844; *Bank of America, supra*, 212 Cal.App.4th at 1099.)

Employment records are generally covered by the constitutional right of privacy. (*Board of Trustees v. Superior Court* (1981) 119 Cal. App. 3d 516, 528.) Likewise, financial records are also generally protected. (*Webb v. Standard Oil Co. of Calif.* (1957) 49 Cal.2d 509, 513-514.) Thus, the subpoenas clearly seek information covered by Plaintiff’s right to privacy. However, the right to privacy is not absolute and even private information can be disclosed in some circumstances. When a privacy right is implicated, the court must carefully balance the right of privacy against the need for discovery. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856.) Additionally, disclosure of personal information can be compelled only if the information is directly relevant and essential to a fair resolution of the action. (*Alch v. Superior Court* (2008) 165 Cal.App.4th 1412, 1431-1432.) Even where the balance weighs in favor of disclosure of private information, the scope of the disclosure must be narrowly circumscribed and is permitted only to the extent necessary for a fair resolution of the lawsuit. (*Britt, supra*, 20 Cal. 3d. at 859.) “The party seeking the constitutionally protected information has the burden of establishing that the information sought is directly relevant to the claims.” (*Tylo v. Superior Court* (1997) 55 Cal. App. 4th 1379, 1387.) The party must also show that the information cannot be obtained through depositions or from nonconfidential sources. (*Life Technologies Corp. v. Superior Court* (2011) 197 Cal. App. 4th 640, 652.)

In the present case, Arrowhead fails to show that the records sought, which include Plaintiff’s entire personnel file, all of his employment records, and all financial records related to his prior employment, contain information that is directly relevant to either Plaintiff’s claims or Arrowhead’s defenses and is necessary for a fair resolution of the lawsuit. (*Tylo, supra*, 55 Cal. App. 4th at 1387; *Britt, supra*, 20 Cal. 3d. at 859.) Furthermore, none of the cases cited by Arrowhead in support of its argument that Plaintiff’s prior employment records are discoverable because Plaintiff put them in issue are on point or provide assistance. (See, *Heller v. Norcal Mut. Ins. Co.* (1994) 8 Cal.4th 30, 42-44 [medical malpractice plaintiff did not state a cause of action for invasion of privacy against non-party doctor who disclosed plaintiff’s medical records to the defendant doctor’s insurer because plaintiff put her medical condition in issue by filing the medical malpractice action]; *Palay v. Superior Court* (1993) 18 Cal.App.4th 919, 933-934, disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531, 556-557 [discovery of mother’s prenatal records were allowed in a medical

malpractice action brought on behalf of a minor for failure to properly diagnose and treat a disease detected at birth because the records were directly relevant to the cause of the disease and there was no other way to obtain the information]; *Rosales v. City of Los Angeles* (2000) 82 Cal.App.4th 419, 426-427 [in an action filed by a police officer against the county for invasion of privacy after his personnel records were provided in a separate action brought by a minor alleging the officer sexually assaulted her, the court acknowledged the records were protected, but held that the officer had no private right of action against his employer for the disclosure]; *John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1199-1200 [in an action brought by a wife against her husband for infecting her with HIV, court allowed limited discovery related to the husband HIV status and sexual history because by claiming in his answer that the wife gave him HIV, he put his condition in issue, and the discovery was directly relevant to the issue of when he knew he had HIV]; and *Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Superior Court* (2006) 137 Cal.App.4th 579, 595-596 [in a malpractice action, the court allowed discovery related to a non-party law firm's finances because the discovery was directly relevant to the issue of collectability of judgment].¹ There is also no evidence that the information cannot be obtained from other sources. Therefore, Arrowhead has not met its burden of establishing a compelling need for the documents/information sought.

Arrowhead also argues that Plaintiff waived his right to privacy in his employment and personnel records by bringing this action claiming that he was sexually harassed. (Opposition, pp. 5:3-12, 8:4-9:18.) While bringing a lawsuit may implicitly be a partial waiver of one's constitutional right of privacy, the scope of such waiver must be narrowly construed so that plaintiffs will not be unduly deterred from instituting lawsuits by the fear of exposure to private information. (*Vinson, supra*, 43 Cal.3d at 840.) Only information that is directly relevant to the incidents and injuries put into issue by the party is discoverable, and forced disclosure must be precise and narrowly tailored. (*Britt, supra*, 20 Cal. 3d at 864, 856.) As discussed above, Arrowhead fails to show that any of the private information requested is directly relevant to the incident and injuries put in issue by Plaintiff. Accordingly, the motion to quash is granted.

¹ In its opposition, Arrowhead states that these cases involve employment lawsuits brought by employees where discovery of personnel records was allowed. (Opposition, pp. 8:19-10:10.) However, the majority of the cases cited involved medical malpractice actions and medical records, and the only action brought by an employee against an employer was for invasion of privacy, where the disclosure of personnel records was the sole issue in the case. They have no relevance to the issues here, other than as further support for the proposition, discussed above, that private information can be ordered disclosed only if it is directly relevant to the issues in the case.